

STATE OF COLORADO OFFICE OF ADMINISTRATIVE COURTS 633 17 TH Street, Suite 1300 Denver, Colorado 80202	▲ COURT USE ONLY ▲
State Board of Licensed Professional Counselor Examiners, Petitioner, vs. Anne Cyphers, LPC, License No. 1178, Respondent.	
CASE NUMBER: RG PC DLTDY	
ORDER OF SUMMARY SUSPENSION	

TO: Anne Cyphers, LPC

ORDER OF SUMMARY SUSPENSION

The State Board of Licensed Professional Counselor Examiners, ("Board"), having reviewed all available information as to the matters referenced below, HEREBY FINDS:

1. The respondent, Anne Cyphers, LPC, ("Respondent") has been licensed as a Professional Counselor in the State of Colorado beginning on or about May 31, 1995 through all times relevant to this matter.
2. The Board has jurisdiction over Respondent and the subject matter herein.
3. On September 15, 2006, the Board concluded that reasonable cause exists to believe that Respondent is unable to practice with reasonable skill and safety to patients and ordered that Respondent submit to a mental status evaluation conducted by Dr. Roger S. Miller ("Dr. Miller") pursuant to C.R.S. § 12-43-224(2)(d).
4. On or about October 4, 2006, the Board notified Respondent, in writing, of the order to submit to a mental status evaluation at the Respondent's address of record with the Board ("October 4, 2006 correspondence").
5. In the October 4, 2006 correspondence, the Board advised Respondent to contact Dr. Miller no later than November 3, 2006 and notified Respondent that failure to comply could result in summary suspension of her license to practice professional counseling.

6. Dr. Miller attempted, unsuccessfully, to contact Respondent by telephone on three separate occasions beginning on October 12, 2006 through October 17, 2006.

7. On or about October 20, 2006, Dr. Miller sent Respondent written correspondence requesting that she contact him by November 3, 2006 to schedule the mental status evaluation.

8. As of November 21, 2006, Respondent had not scheduled an appointment for a mental status evaluation with Dr. Miller.

9. Respondent has not demonstrated good cause for her failure to submit to the mental status examination.

10. Respondent's failure to submit to the Board ordered examination is a violation of C.R.S. §§ 12-43-224(d) and (e) and § 12-43-222(1)(b).

11. C.R.S. § 12-43-224(2)(c) authorizes the Board to summarily suspend Respondent's license until such time as she submits to the mental status evaluation.

12. Based on the information contained herein, reasonable grounds exist to believe, and the Board so finds, that the public health, safety, and welfare imperatively require that emergency action be taken.

THEREFORE, IT IS ORDERED that the license of Anne Cyphers, LPC, to practice professional counseling in the state of Colorado be summarily suspended until such time as she has completed a mental status examination ordered by the Board in accordance with C.R.S. §§ 12-43-224(2)(d) and (e) and C.R.S. § 24-4-104(4) or until such time that it is determined whether Respondent's license should be further disciplined in accordance with C.R.S. § 12-43-222.

IT IS FURTHER ORDERED that Anne Cyphers, LPC immediately cease, desist, and refrain from performing psychotherapy, as defined by C.R.S. § 12-43-201(9), or any act constituting clinical mental health counseling or professional counseling as defined by C.R.S. §§ 12-43-601(2) and (5) or other acts requiring a license to practice professional counseling under the laws of the State of Colorado.

DATED this 22nd day of November, 2006.



GAYLE D. FIDLER
Program Director
State Board of Licensed Professional
Counselor Examiners

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